

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1431

BY FINANCE COMMITTEE

AN ACT

RELATING TO THE APPROPRIATION TO THE DEPARTMENT OF WATER RESOURCES; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF WATER RESOURCES FOR FISCAL YEAR 2027; APPROPRIATING AND TRANSFERRING MONEYS FROM THE REVOLVING DEVELOPMENT FUND TO THE AQUIFER PLANNING AND MANAGEMENT FUND FOR FISCAL YEAR 2027; PROVIDING REAPPROPRIATION AUTHORITY FOR THE ARPA STATE FISCAL RECOVERY FUND; DIRECTING THAT MONEYS APPROPRIATED FOR GENERAL STREAM ADJUDICATIONS COUNT TOWARD FILING FEES FOR FISCAL YEAR 2027; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. In addition to any other appropriation provided by law, there is hereby appropriated to the Department of Water Resources the following amounts to be expended according to the designated programs and expense classes from the General Fund for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
Planning and Technical Services		\$195,000	\$195,000
Northern Idaho Adjudication	\$97,500		97,500
Bear River Basin Adjudication	<u>97,500</u>	<u>0</u>	<u>97,500</u>
TOTAL	\$195,000	\$195,000	\$390,000

SECTION 2. CASH TRANSFER FOR AQUIFER MONITORING. There is hereby appropriated to the Department of Water Resources and the Office of the State Controller shall transfer \$716,000 from the Revolving Development Fund to the Aquifer Planning and Management Fund on July 1, 2026, or as soon thereafter as practicable for the period July 1, 2026, through June 30, 2027, to be used for aquifer monitoring, measurement, and modeling.

SECTION 3. REAPPROPRIATION AUTHORITY FOR THE ARPA STATE FISCAL RECOVERY FUND. There is hereby reappropriated to the Department of Water Resources any unexpended and unencumbered balances appropriated or reappropriated to the Department of Water Resources in the Planning and Technical Services Program from the ARPA State Fiscal Recovery Fund for fiscal year 2026 to be used for nonrecurring expenditures related to water infrastructure projects for the period July 1, 2026, through June 30, 2027. The Office of the State Controller shall confirm the reappropriation amount, by fund,

1 expense class, and program, with the Legislative Services Office prior to
2 processing the reappropriation authorized herein.

3 SECTION 4. FILING FEES. Notwithstanding Section 42-1414(1)(c), Idaho
4 Code, it is the intent of the Legislature that moneys appropriated in Sec-
5 tion 1 of this act for Idaho's general stream adjudications from the General
6 Fund count toward the filing fees required under Section 42-1414(1)(a) and
7 (b), Idaho Code, for water right claims filed in Idaho's general stream ad-
8 judications by the Idaho Water Resource Board and the Governor of the State
9 of Idaho based on instream flow, public lake level maintenance, or recre-
10 ation. If the General Fund appropriation exceeds the amount required for the
11 Idaho Water Resource Board's and the Governor's filing fees in the current
12 fiscal year, the excess shall be counted toward future filing fees required
13 for those same purposes. If the General Fund appropriation does not meet or
14 exceed the fee required for claims of the Idaho Water Resource Board or the
15 Governor, the Director of the Department of Water Resources shall grant an
16 extension of time to the Idaho Water Resource Board or the Governor to file
17 the claim, and the General Fund appropriation for the following fiscal year
18 shall be counted toward the balance of the filing fee.

19 SECTION 5. An emergency existing therefor, which emergency is hereby
20 declared to exist, this act shall be in full force and effect on and after
21 July 1, 2026.